

Tentative Rulings for August 26, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

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1.

CASE #	CASE NAME	HEARING NAME
CVPS2404533	COLTON VS WYNDHAM DESTINATIONS, INC.	MOTION TO COMPEL INITIAL RESPONSES OF PLAINTIFF TO REQUESTS FOR PRODUCTION OF DOCUMENTS AND REQUEST FOR SANCTIONS PURSUANT TO CCP SEC. 2030.290(C) AGAINST PLAINTIFF KRISTINE COLTON BY WORLDMARK, THE CLUB

Tentative Ruling: No tentative ruling. Hearing is continued to consolidate all future hearings. The Motions to Compel currently set for 8.26.26, 9.01.26, 9.03.26, 9.09.26 and 9.11.26 are all continued to 9.22.26 at 8:30 a.m. Any oppositions to the motions shall be filed by 9.09.26. Any reply to be filed by 9.15.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2503181	CARREJO, BY AND THROUGH HIS SUCCESSORS IN INTEREST ROSALINDA FRAUSTO VS DESERT REGIONAL MEDICAL CENTER	MOTION TO SET ASIDE DEFAULT FOR FAILURE TO TIMELY RESPOND TO REQUEST FOR ADMISSIONS ON 2ND AMENDED COMPLAINT OF FRANCISCO CARREJO, BY AND THROUGH HIS SUCCESSORS IN INTEREST ROSALINDA FRAUSTO BY DESERT REGIONAL MEDICAL CENTER

Tentative Ruling: No tentative ruling. Hearing continued to 9.16.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2504070	LIBERTAD VS COUNTY OF RIVERSIDE	DEMURRER ON 2ND AMENDED COMPLAINT OF URIMARE LIBERTAD

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (CCP § 430.10(f).) Demurrers for uncertainty, however, are typically sustained only where the defendant cannot reasonably determine what issues must be

admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Government Liability:

"In California, all government tort liability must be based on statute." (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1457; Gov. Code § 815(a) [a public entity is not liable for any injury "[e]xcept as otherwise provided by statute"]; *Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442 [there is no common law tort liability for public entities—only statutory]; *Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832 ["Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions."]; *Duarte v. San Jose* (1980) 100 Cal.App.3d 648; *Ladd v. County of San Mateo* (1996), 12 Cal 4th 913.) In addition, no statute permits a finding of liability based on "equitable principles." (*Tuthill v City of San Buenaventura* (2014) 223 Cal.App.4th 1081, 1089.) Since all liability under the Government Claims Act is statutory, each tort cause of action must be specifically alleged and every element of the statutory basis of liability must be set forth. (*Zipper v. County of Santa Clara* (2005) 133 Cal.App.4th 1013, 1020; *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

In the present case, Plaintiff asserts causes of action for dangerous condition of public property, breach of a mandatory duty, negligence of public employees, and declaratory relief, all based on the same facts: that Defendants failed to maintain, inspect, and safely manage Mt. Edna Road, a fire access route, which caused physical injury, property loss, and emergency response failure during multiple fire events.

Dangerous Condition of Public Property under Gov. Code § 830 and 835:

Gov. Code § 835 sets out the exclusive conditions under which a public entity may be held directly liable for injuries caused by a "dangerous condition" of public property. (*Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1132.) A public entity may be held liable only if all of the following elements are satisfied: (1) the condition on its property must be one that creates a substantial risk of injury when the property or adjacent property is used with due care in a reasonably foreseeable manner; (2) the condition must have existed at the time of the injury; (3) the injury must have been "proximately caused" by the condition; (4) the condition must have created a "reasonably foreseeable" risk of the kind of injury suffered; and (5) either (i) the condition must have been created by a negligent or wrongful act or omission of an employee within the scope of his or her public employment, or (ii) the entity must have had "actual or constructive notice" of the condition sufficiently before the injury to have taken measures to protect against the risk involved. (Gov. Code §§ 830(a), 835; *City of Los Angeles v. Superior Court* (2021) 62 Cal.App.5th 129, 139.) Gov. Code § 830(c) states: "'Property of a public entity' and 'public property' mean real or personal property owned or controlled by the public entity, but do not include easements, encroachments and other property that are located on the property of the public entity but are not owned or controlled by the public entity."

Here, as indicated in the Court's ruling on County's previous demurrer, the undisputed evidence, of which the Court previously took judicial notice, shows that Mt. Edna Road is not a County Road. Additionally, there are no allegations in the SAC that County owns either Mt. Edna Road or Plaintiffs' property. Thus, potential liability under

Gov. Code §§ 830 and 835 rests on whether or not County “controls” the Property and/or Mt. Edna Road. (See, Gov. Code § 830(c).)

“Where the public entity’s relationship to the dangerous property is not clear, aid may be sought by inquiring whether the particular defendant had control, in the sense of power to prevent, remedy or guard against the dangerous condition...” (*Low v. City of Sacramento* (1970) 7 Cal.App.3d 826, 833–34; see also, *Searcy v. Hemet Unified School District* (1986) 177 Cal.App.3d 792, 798-799.) In *Searcy*, where a student was hit by a vehicle while walking home from school on a known short-cut that was not owned by the school district, the plaintiff alleged the district controlled the short-cut because it was responsible for students’ safety. The appellate court affirmed the trial court’s order sustaining the school district’s demurrer finding that there was no dangerous condition on property owned or controlled by the district, and there was no mandatory duty regarding the short-cut. The plaintiffs argued that the school district had the power to prevent or guard against the dangerous condition because it had the authority to install traffic control devices for student safety. (*Id.* at 799.) The court found this was not “the kind or degree of control necessary for section 835 liability.” (*Id.* at 799-800.) The court then affirmed the dismissal of the Complaint, finding that “[t]he complaint specifies no authority which empowers or requires School District to manage the property on an ongoing basis or to erect barriers or traffic controls that might control pedestrian and vehicular traffic over the property.” (*Id.* at 800.)

In the present case, in an attempt to show County controlled the Property and/or Mt. Edna Road, Plaintiff alleges that County maintained various types of government records regarding the Property and surrounding parcels, and responded to fires and emergencies using Mt. Edna Road, and conducted investigations, inspections, and code-enforcement activities in the Mt. Edna area. (SAC at ¶¶ 18-22, 26-31, 89-93.) While these allegations, accepted as true, show that County actively accessed and used Mt. Edna Road, they are insufficient to show that County “had control, in the sense of power to prevent, remedy or guard against” conditions on Mt. Edna Road. (See, *Low, supra*, 7 Cal.App.3d at 833–34.)

Thus, Plaintiff fails to allege facts showing any dangerous condition on property owned or controlled by County. Accordingly, Plaintiff fails to allege sufficient facts to state a cause of action for dangerous condition of public property, and the demurrer to this cause of action should be sustained. (Gov. Code §§ 830(a), 835; *Zelig, supra*, 27 Cal.4th at 1132; *City of Los Angeles, supra*, 62 Cal.App.5th at 139; *Low, supra*, 7 Cal.App.3d at 833–34.)

Mandatory Duty Under Gov. Code § 815.6:

Pursuant to Gov. Code § 815.6, “[w] here a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.”

In the SAC, Plaintiff alleges that County was “subject to mandatory duties imposed by statute, regulation, ordinance, policy, public-safety requirements, emergency-response requirements, and other legal obligations intended to protect the public from injury,” and it failed to discharge these duties. (SAC at ¶¶ 173-175.) However, Plaintiff fails to identify any “statute, regulation, ordinance” that sets forth these purported duties. (See, SAC at ¶¶ 173-182.) As County’s liability can only be based on a statute, the

mandatory duty statute requires “an enactment” that creates the mandatory duty, and Plaintiff fails to identify any such enactment, Plaintiff fails to allege sufficient facts to state a cause of action for violation of a mandatory duty.

Negligence of Public Employees Under Gov. Code §§ 815.2 and 820:

Pursuant to Gov. Code § 820, “[e]xcept as otherwise provided by statute (including Section 820.2), a public employee is liable for injury caused by his act or omission to the same extent as a private person. Pursuant to Gov. Code 815.2:

(a) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.

(b) Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.

(*Ibid.*)

In the SAC, Plaintiff alleges that County’s various employees, agents, and representatives failed to exercise reasonable care in performing duties connected with Mt. Edna Road. (SAC at ¶¶ 184-193.) However, as discussed above, Plaintiff fails to allege sufficient facts showing that County owned or controlled Mt. Edna Road. Therefore, it also fails to sufficiently allege any duty by County or its employees/agents related to Mt. Edna Road. Accordingly, there is no basis for a negligence claim against any County employee pursuant to Gov. Code § 820, and no basis for County’s liability under Gov. Code § 815.2.

Declaratory Relief:

Finally, Plaintiff asserts a cause of action for declaratory relief without citing any statutory authority. As no statute provides the basis for this claim, it cannot be asserted against County.

Uncertainty:

While County specially demurs to the SAC on the ground of uncertainty under C.C.P. § 430.10(f), it fails to explain how any of the claims are uncertain such that it cannot reasonably determine what issues must be admitted or denied, or what claims are directed against them. (*Khoury, supra*, 14 Cal.App.4th 612, 616.)

General Demurrer by Defendant County of Riverside as to the Second Amended Complaint as a whole SUSTAINED, with leave to amend. Plaintiff to file an amended complaint within 30 days.

Plaintiff shall not be permitted any further opportunities to amend the complaint.

Special Demurrer by Defendant County of Riverside as to the Second Amended Complaint as a whole OVERRULED.

Case Management Conference and OSC continued to 11.09.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2505376	ELIZABETH COLDICUTT AS AGENT FOR THOMAS COLDICUTT VS MARK PORCELLO INC	HEARING RE: MOTION TO SET ASIDE DEFAULT ON COMPLAINT FOR OTHER COMPLAINT (OVER \$35,000) OF ELIZABETH COLDICUTT BY MARK PORCELLO

Tentative Ruling: The motion must be filed within six months of the clerk’s entry of default and also within a “reasonable time” after discovery of the default. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234.) A delay of three or more months or more is an unofficial standard under which courts will routinely deny relief unless there is a satisfactory explanation for the delay. (*Stafford v. Mach* (1998) 64 Cal.App.3d 1174, 1184.) The time runs from the entry of the default, not the default judgment. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273.) The application for relief “shall be accompanied by a copy of the answer or other pleading proposed to be filed ... otherwise the application shall not be granted.” (C.C.P. § 473(b).)

The court is empowered to relieve a party “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P. §473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief....” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.) If the party in default moves promptly for relief and no prejudice to the opposing party will result from setting aside the default, only “very slight evidence will be required to justify a court in setting aside the default” (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233 [quoting *Berri v. Rogero* (1914) 168 Cal. 736, 740].)

The court may be asked to grant equitable relief from a default judgment whenever the “extrinsic fraud or mistake” is discovered; the only time requirement is that a party is expected to proceed diligently to seek relief. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) A court has inherent, equitable power to set aside a judgment on the ground of extrinsic fraud or mistake. (*Bae v. T.D. Service Co. of Arizona* (2016) 245 Cal.App.4th 89, 98.) There are three essential requirements to obtain relief. The party in default must show a meritorious defense, a satisfactory excuse for not presenting a defense to the original action, and diligence in seeking to set aside the default once it was discovered. (*Rappleyea*, 8 Cal.4th 975, 982.) Relief is generally available only for “extrinsic fraud or mistake,” but it does not require fraud or mistake in the strict sense—the terms “tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing.” (*In re Marriage of Park* (1980) 27 Cal.3d 337, 342.) “Extrinsic fraud occurs when a party is deprived of the opportunity to present a claim or defense to the court as a result of being kept in ignorance or in some other manner being fraudulently prevented by the opposing party from fully participating in the proceeding,” while “[e]xtrinsic mistake is found when [among other things] ... a mistake led a court to do what it never intended....” (*County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1228-1229.) But “extrinsic fraud and extrinsic mistake are unavailable when a party’s own negligence allows the fraud or mistake to occur.” (*Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 29.) And the fraud or mistake must be extrinsic rather than intrinsic, in the sense that the party must have been denied the opportunity to be heard. If the fraud or mistake goes to the merits of the action, or occurred at trial, it is deemed “intrinsic” and not ground for relief. (*In re Marriage of Thorne & Raccina* (2012) 203

Cal.App.4th 492, 505.) “[I]f a party has been given notice of an action and has not been prevented from participating therein,” relief must be denied because “[h]e has had an opportunity to present his case to the court and to protect himself from mistake or from any fraud attempted by his adversary.” (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 472.)

Defendant Mark Porcello filed the motion to set aside on 7.20.26. Defendant seeks to set aside the default on the basis of CCP 473(b) or equitable relief. Porcello was defaulted in this matter on 6.10.26. On 2.10.26, the court sustained a demurrer as to some of the causes of action for Plaintiff’s complaint, and following court’s order permitting Plaintiff 30 days to file an amended complaint, no amended complaint was submitted. After the expiration of the time, Defendant Porcello failed to file an answer. Defendant’s motion to set aside focuses on his prior participation in the case, to include filing the demurrer and a Motion to Dissolve the Operative Injunction. However, Defendant fails to give any basis for his failure to submit an answer, other than to state that Plaintiff did not alert Defendant that Plaintiff was not filing an amended complaint. Defendant references the court treating him as an active litigant, however, after entry of default, the court on 6.18.26 vacated the Motion to Dissolve as Defendant was no longer an active litigant. The declaration submitted by Porcello fails to show mistake, inadvertence, surprise or excusable neglect that warrants setting aside the default.

As to equitable relief, Defendant has not shown a satisfactory excuse for not presenting a defense, nor has Defendant shown any type of extrinsic fraud or mistake. Defendant’s reliance on Plaintiff litigating the Motion to Dissolve while also seeking a default is not persuasive. Nor is the court continuing the motion prior to the default being entered, grounds to grant the motion to set aside.

Motion to Set Aside Default DENIED.

Case Management Conference and OSC confirmed for 9.24.26.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2603169	CALIFORNIA LABOR COMMISSIONER, DIVISION OF LABOR STANDARDS ENFORCEMENT, DEPARTMENT OF INDUSTRIAL RELATIONS, STATE OF CALIFORNIA, ON BEHALF OF THE PEOPLE OF THE STATE OF CALIFORNIA VS LP FARM LABOR, LLC	HEARING RE: DEMURRER ON COMPLAINT FOR OTHER EMPLOYMENT (OVER \$35,000) OF CALIFORNIA LABOR COMMISSIONER, DIVISION OF LABOR STANDARDS ENFORCEMENT, DEPARTMENT OF INDUSTRIAL RELATIONS, STATE OF CALIFORNIA, ON BEHALF OF THE PEOPLE OF THE STATE OF CALIFORNIA BY LP FARM LABOR, LLC, ZAVALA FARM, LLC, LUIS ALBERTO ZAVALA, CHARIFE I. ZAVALA

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly alleged, and of any material facts of

which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Statute of Limitations:

Under Labor Code § 98.7(c)(1):

If the Labor Commissioner determines a violation has occurred, the Labor Commissioner may issue a determination in accordance with this section or issue a citation in accordance with Section 98.74. If the Labor Commissioner issues a determination, the commissioner shall notify the complainant and respondent and direct the respondent to cease and desist from any violation and take any action deemed necessary to remedy the violation, including, where appropriate, rehiring or reinstatement, reimbursement of lost wages and interest thereon, payment of penalties, payment of reasonable attorney's fees associated with any hearing held by the Labor Commissioner in investigating the complaint, and the posting of notices to employees. If the respondent does not comply with the order within 30 days following notification of the Labor Commissioner's determination, the Labor Commissioner shall bring an action promptly in an appropriate court against the respondent. An action by the Labor Commissioner seeking injunctive relief, reimbursement of lost wages and interest thereon, payment of penalties, and any other appropriate relief, shall not accrue until a respondent fails to comply with the order for more than 30 days following notification of the commissioner's determination. The Labor Commissioner shall commence an action within three years of its accrual, regardless of whether the commissioner seeks penalties in the action.

The Complaint alleges that Plaintiff issued a determination letter to Defendants on 12/30/25, which contained a demand for remedies. (Complaint, ¶ 41.) Defendants have failed to comply with the Plaintiff's determination and demand for remedies. (Id. at ¶¶ 43-44.) This lawsuit was filed on 4/8/26, well within the three years set forth in Labor Code § 98.7(c)(1).

Defendants argue that the statute of limitations bars this claim because under Labor Code § 98.7(e), "the Labor Commissioner shall notify the complainant and respondent of the commissioner's determination under subdivision (c) or paragraph (1) of subdivision (d), not later than on year after the filing of the complaint." The Complaint alleges that on 7/11/17, Guiterrez filed the complaint with Plaintiff. (Complaint, ¶ 26.) The 12/30/25 determination by the Plaintiff is well over this one year time period. As such, this provision of Labor Code § 98.7 has not been complied with.

While Plaintiff failed to comply with this one year time period, this deadline is directory and did not take away Plaintiff's jurisdiction to render a determination. Typically, requirements regarding the time within which an act must be done by a government entity are directory rather than mandatory or jurisdiction, unless the statute clearly expresses otherwise. (*Edwards v. Steele* (1979) 25 Cal.3d 406, 410.) The "directory" or "mandatory"

designation denotes whether the failure to comply with a particular procedural step in a statute will or will not have the effect of invalidating the governmental action to which the procedural requirements relate. (*California Correctional Peace Officers Assn. v. State Personnel Bd.* (1995) 10 Cal.4th 1133, 1145.) “If the action is invalidated, the requirement will be termed ‘mandatory.’ If not, it is ‘directory’ only.” (*Ibid.*) A time limit is usually directory unless the Legislature clearly states a contrary intent. (*Id.*)

In determining whether a time limit is directory or mandatory, some courts look at whether there are penalties put in place for missing the applicable time period. (*Id.*) In Labor Code § 98.7, there are no penalties identified for missing the one year deadline in subdivision (e). As such, based on this test the deadline would be directory, not mandatory. The other test applied in these matters looks at whether imposing the deadline would defeat or promote the purpose of the statute. (*California Correctional Peace Officers Assn., supra*, 10 Cal.4th at 1145.) The purpose of Labor Code § 98.7, is to provide a mechanism by which employee’s complaints against their employers can be resolved. Part of the purpose of this statute is to provide a mechanism by which the Labor Commissioner could investigate these claims, make a determination, and attempt to resolve them before litigation. Making the one year time period mandatory would not promote this purpose.

Laches:

Defendants’ argument is that Plaintiff’s claims are barred by laches fails. Laches applies only to equitable actions. (*Connolly v. Trabue* (2012) 204 Cal.App.4th 1154, 1164.) Plaintiff’s claims are statutory in nature.

Both parties improperly submitted declarations in this matter to support the merits of their arguments in the moving and opposing papers. The role of a demurrer is to test the legal sufficiency of the complaint. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In ruling on a demurrer, the court cannot consider the substance of declarations and other matters not subject to judicial notice. (*Ibid.*) As such, the Court cannot consider the evidence provided in these declarations when ruling on the demurrer.

Defendants’ Demurrer to the 1st, 2nd and 3rd Causes of Action OVERRULED.

Defendants to file an answer within 20 days.

Case Management Conference confirmed for 11.02.26.